

Track 1 — Chapter Build Pass

MPEP Chapter 400 · Representative of Applicant or Owner

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Who Can Act, and How Representation Changes

A short, rule-based chapter on power of attorney mechanics — who can be named, how it's revoked, and the practitioner's obligations when stepping away. Lightly tested but occasionally shows up as a clean, factual question.

Rule 1: Who Can Be Named in a Power of Attorney (§402)

PLAIN ENGLISH

A **power of attorney** may only name **registered patent practitioners** (patent attorneys or patent agents) as representatives — not just any attorney, and not a lay person. An applicant may also choose to prosecute **pro se** (representing themselves) without any power of attorney at all.

EXAMPLE

An inventor wants their general business attorney (who isn't registered to practice before the USPTO) to handle their patent application. That attorney cannot be named in a power of attorney unless they are also a registered patent practitioner — the applicant would need a registered patent attorney/agent, or proceed pro se.

QUIZ

Who may be named as a representative in a power of attorney before the USPTO?

- (A) Any licensed attorney, regardless of USPTO registration
- (B) Only registered patent practitioners (patent attorneys or agents)
- (C) Any family member of the inventor
- (D) Only the named inventor's employer

Rule 2: Revocation of Power of Attorney (§402.05)

PLAIN ENGLISH

An applicant (or assignee of the entire interest, once properly established) may **revoke** a power of attorney at any time and appoint a new practitioner, by filing the appropriate revocation document. Revocation is effective when the Office receives it, and the new power of attorney should typically be filed at the same time to avoid a gap in representation.

EXAMPLE

An applicant unhappy with their current patent attorney's handling of the case files a revocation of the existing power of attorney along with a new power of attorney naming a different practitioner, switching representation without needing the outgoing attorney's consent.

QUIZ

Can an applicant revoke a power of attorney without the current practitioner's consent?

- (A) No, the practitioner must agree first
 - (B) Yes — the applicant (or properly established assignee of the entire interest) may revoke at any time
 - (C) Only with USPTO Director approval
 - (D) Only after the application has issued
-

Rule 3: Practitioner's Duty When Withdrawing (§402.06)

PLAIN ENGLISH

A registered practitioner seeking to **withdraw** from representation must generally file a request showing reasonable notice was given to the client, and withdrawal must not unduly prejudice the client's interests (e.g., withdrawing right before an approaching deadline without adequate notice is disfavored). Approval of a withdrawal request is at the discretion of the Office.

EXAMPLE

A practitioner who hasn't been paid by their client wants to withdraw. They must show reasonable notice was given to the client, and would generally avoid seeking withdrawal immediately before a critical, fast-approaching deadline, since that could unduly prejudice the client's interests.

QUIZ

What must a practitioner generally show to be approved to withdraw from representation?

- (A) Nothing, withdrawal is automatic upon request
- (B) Reasonable notice to the client, without undue prejudice to the client's interests
- (C) That the client has passed away
- (D) That the application has already been abandoned

Rule 4: Correspondence Address & Its Role (§403)

PLAIN ENGLISH

The USPTO sends official correspondence to the **correspondence address** of record — generally the address of the practitioner with power of attorney if one is appointed, or the applicant's own address if pro se. Keeping this address current matters, since missed correspondence due to an outdated address generally doesn't excuse a missed deadline.

EXAMPLE

An applicant's registered practitioner moves offices but forgets to update the correspondence address of record. An Office action mailed to the old address, if properly sent to the address of record, generally still starts the applicable response period running, even though the practitioner didn't actually see it promptly.

QUIZ

If the Office properly mails correspondence to the address of record, but that address is outdated due to the applicant's failure to update it, does the response period still generally run?

- (A) No, the response period is tolled indefinitely
 - (B) Yes — mailing to the address of record generally starts the response period, regardless of whether it's promptly received
 - (C) No, the Office must confirm actual receipt first
 - (D) Only if the applicant is pro se
-

Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An inventor wants to name their cousin, a non-practitioner, in a power of attorney to handle their application. Is this permitted?

- (A) Yes, any trusted person can be named
- (B) No — only registered patent practitioners may be named in a power of attorney
- (C) Yes, if the cousin is also a co-inventor
- (D) Only with a court order

2. Can an applicant revoke their practitioner's power of attorney without that practitioner's consent?

- (A) No, consent is required
- (B) Yes, this is the applicant's right
- (C) Only if the practitioner is deceased
- (D) Only after final rejection

3. A practitioner wants to withdraw right before a critical filing deadline with minimal notice to the client. Is this generally favored?

- (A) Yes, timing doesn't matter
- (B) No — withdrawal must not unduly prejudice the client, and adequate notice is expected
- (C) Yes, as long as a fee is paid
- (D) No, withdrawal is never permitted under any circumstances

4. If the address of record is outdated due to the applicant's own failure to update it, and correspondence is properly mailed there, does the response period still run?

- (A) No, it's automatically tolled
- (B) Yes, generally
- (C) No, unless the applicant admits fault
- (D) Only for pro se applicants

Memorize This: Key Tests & Terms

- Power of attorney may only name **registered patent practitioners** — not any attorney, not a lay person.
- Applicants may also proceed **pro se**.
- Revocation is the **applicant's right**, exercisable without the outgoing practitioner's consent.
- Withdrawal requires **reasonable notice** and no undue prejudice to the client — not automatic.
- Correspondence to the **address of record** generally starts response periods running, regardless of whether it's promptly seen.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Who Can Be Named in a Power of Attorney (§402)

Who may be named as a representative in a power of attorney before the USPTO?

Answer: B

USPTO practice requires registration (passing the patent bar, among other requirements) — general legal licensure alone doesn't qualify someone to be named in a power of attorney for patent prosecution.

Rule 2: Revocation of Power of Attorney (§402.05)

Can an applicant revoke a power of attorney without the current practitioner's consent?

Answer: B

Revocation is the applicant's (or qualifying assignee's) right, not something requiring the current practitioner's agreement — a common, straightforward procedural point.

Rule 3: Practitioner's Duty When Withdrawing (§402.06)

What must a practitioner generally show to be approved to withdraw from representation?

Answer: B

Withdrawal isn't automatic — practitioners must show adequate notice and that the withdrawal won't unfairly harm the client's position in the proceeding.

Rule 4: Correspondence Address & Its Role (§403)

If the Office properly mails correspondence to the address of record, but that address is outdated due to the applicant's failure to update it, does the response period still generally run?

Answer: B

The address of record governs — the burden is on the applicant/practitioner to keep it current; an outdated address generally doesn't excuse a missed response period.

Chapter Close-Out Quiz

1. (B)

Only registered patent practitioners may be named — general trust or family relationship doesn't substitute for USPTO registration.

2. (B)

Revocation is the applicant's (or qualifying assignee's) right, exercisable without the current practitioner's consent.

3. (B)

Withdrawal requests close to a deadline with insufficient notice risk unduly prejudicing the client and are generally disfavored/may be denied.

4. (B)

The address of record controls; keeping it updated is the applicant's/practitioner's responsibility, and an outdated address generally doesn't toll the response period.

End of Chapter 400 (Representative of Applicant or Owner).